

SENATE No. 359

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act promoting healthy culture and climate within schools.

PETITION OF:

NAME:

Paul R. Feeney

DISTRICT/ADDRESS:

Bristol and Norfolk

SENATE No. 359

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 359) of Paul R. Feeney for legislation to promote a healthy culture and climate within schools. Education.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 282 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act promoting healthy culture and climate within schools.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 37H ³/₄ of chapter 71 of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by striking out subsection (b) and inserting in place thereof the
3 following section:-

4 (b) Any principal, headmaster, superintendent or person acting as a decision-maker at a
5 student meeting or hearing, when deciding the consequences for the student, shall consider ways
6 to re-engage the student in the learning process; and shall not suspend or expel a student until
7 alternative remedies have been employed and their use and results documented, following and in
8 direct response to a specific incident or incidents, unless specific reasons are documented as to
9 why such alternative remedies are unsuitable or counter-productive, except, however, in cases
10 where the student's continued presence in school would pose a specific, documentable concern

11 about the infliction of serious bodily injury or other serious harm upon another person while in
12 school or has caused a significant disruption to the learning environment for other students.
13 Alternative remedies may include, but shall not be limited to: (i) mediation; (ii) conflict
14 resolution; (iii) restorative justice; and (iv) collaborative problem-solving. The principal,
15 headmaster, superintendent or person acting as a decision-maker shall also implement school- or
16 district-wide models to re-engage students in the learning process which shall include but not be
17 limited to: (i) positive behavioral interventions and supports models and (ii) trauma-sensitive
18 learning models; provided, however, that school- or district-wide models shall not be considered
19 a direct response to a specific incident.